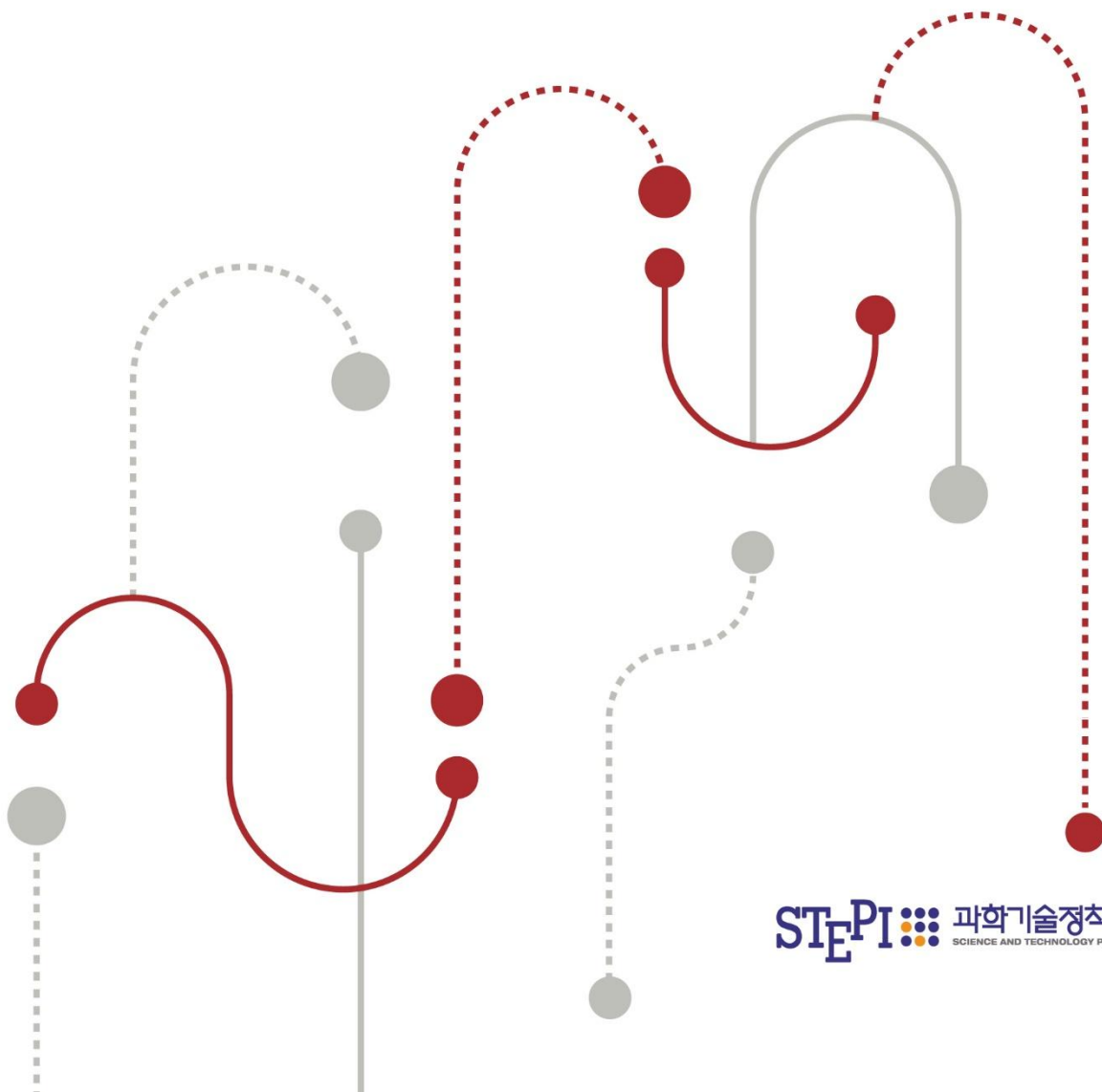


SCIENCE & TECHNOLOGY POLICY

STEPI Insight

Issues and Implications on the CETs Information Protection in Domestic and Overseas Laws of Emerging Security Fields



| Vol. 359. April 22nd. 2026 |

**Issues and Implications on the
CETs Information Protection in
Domestic and Overseas Laws of
Emerging Security Fields**

Yongrae CHO·Sung-A KIM·Sunyub KIM

SUMMARY

Issues and Implications on the CETs Information Protection in Domestic and Overseas Laws of Emerging Security Fields

Yongrae CHO·Sung-A KIM·Sunyub KIM

■ **Countries are strengthening their laws, systems, and information security policies to prepare for and respond to emerging security risks in addition to traditional security concerns like defense and diplomacy**

- Major countries are treating emerging security issues, such as economic security, as core strategic areas of national security and are strengthening laws and systems to respond proactively; this is expected to have a direct impact on South Korea as well.
- There is a growing trend where not only diplomatic adversaries but also allied nations are strengthening penalties without exception for the leakage of their own military and non-military secrets, and expanding the scope of state secrets.
- As the scope of national security expands to include emerging security domains, the scope of information protection under domestic and overseas laws is also expanding; therefore, an analytical investigation of domestic and overseas situations is necessary to formulate policy measures

■ **This paper sets two objectives based on the following concerns regarding information protection**

- **(Legal Survey)** What are the domestic and international laws and policy examples regarding the protection of state-critical information?
- **(Typological Analysis)** How can information security laws and policy examples be structured and categorized?

- By conducting a comprehensive survey of information security provisions in domestic and overseas laws related to emerging security issues and categorizing and structuring their characteristics, this study aims to provide information on the latest policy trends and offer policy recommendations based on the analysis

■ **Typological Analysis of Legal Provisions from an Information Security Perspective with Subject to Korea, Japan, and China**

- Information security issues in emerging security-related domestic and overseas laws have been categorized and structured
- Laws by three countries of Korea, Japan, and China have been categorized into two types: 'Subjects of Information Protection' and 'Required Measures'
- **(Subjects of Information Protection)** The 'Subjects of Information Protection' category is defined as 'Information Related to Critical Technologies'
- **(Measures)** The 'Measures' category is divided into 'Prevention' and 'Incident Response' based on preparedness and response aspects
- Domestic and overseas laws have emphasized the context of non-traditional security; overseas trends show a tendency to maintain the linkage between traditional and non-traditional security through amendments to existing laws

Suggestion 1. Strengthen channels for exchange and linkage between legislative and policy information, as well as a consistent enforcement system

- Rather than measures centered on justification and rationale-such as "establishing a national control tower" or "enacting a unified law"-an approach is needed that implements feasible practical measures while maintaining the current system, taking into account the realities of South Korea's policy landscape

- Given the current situation where multiple operational frameworks for information and technology protection exist under different laws, the exchange of policy information and mutual monitoring among ministries are essential measures
- Practical measures to strengthen inter-legislative linkages and enhance the functionality of enforcement system channels
 - ① Implementation of follow-up practical measures and revision of laws and regulations to strengthen the linkage between recent legislation related to emerging security and existing legislation related to national security
 - ② Strengthening the functions of a consistent enforcement system and related channels to enhance the effectiveness and operational feasibility of current strategic technology information protection measures

Suggestion 2. Substantive improvement of follow-up measures for information protection preparedness and response based on comparative analysis and categorization of legislation

- **(Categorization of Information Protection)** It is necessary to classify and systematically organize the concept and scope of “information,” as well as preparedness and response measures, according to the objectives and purposes of each law
- **(Strengthening Related Measures)** While reflecting the current era of emerging security threats, it is necessary to develop policies that align with the philosophy and objectives of each law, and to revise the legal framework by defining the ‘objects of the act’ and ‘perpetrators’ more broadly

Suggestion 3. Establishing Policy Practical Measures for Research Security in International Joint Research

- **(Review and Revision of Emerging Security Legislation)** Revise the research security framework through a comprehensive review of relevant laws and sharing of information when contacting foreign entities during international joint research.
- **(Security Governance)** Support information protection in international joint research by strengthening research security functions at the executive level of each research institute and enhancing overseas response capabilities
- **(Legal Procedures)** Establish a legal and institutional framework that clearly defines ownership of R&D results, the scope of information transfer, measures to be taken in the event of a dispute, and applicable legal procedures